



CHAPTER xxxviii.

An Act to empower the lord mayor aldermen and citizens of the city of Birmingham to construct street improvements and a tramway to extend their limits and those of the East Worcestershire Waterworks Company for the supply of water to enlarge their powers in regard to their savings and housing bank and to make further provision in regard to their several undertakings and to the health local government and improvement of the city and for other purposes. [20th December 1929.] A.D. 1929.

WHEREAS it is expedient to empower the lord mayor aldermen and citizens of the city of Birmingham (in this Act called "the Corporation") to construct the street improvements and tramway described or referred to in this Act and to enlarge their powers with regard to the acquisition retention development and disposal of lands :

And whereas an agreement has been entered into between the Corporation and the East Worcestershire Waterworks Company a copy of which is set forth in the First Schedule to this Act and it is expedient to confirm the agreement and to extend the limits of the Corporation and of the said company for the supply of water and to make further provision with regard to the water undertaking of the Corporation :

A.D. 1929.

And whereas it is expedient to authorise the making of town planning schemes as respects land in the city which is wholly or partly developed and to make further provision in relation to the health local government and improvement of the city :

And whereas by the Birmingham Corporation Act 1919 the Corporation were empowered to establish a savings and housing bank and it is expedient to enlarge the powers of the Corporation in regard thereto :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

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(a) For the purchase of lands and buildings for the purposes of this Act	60,666
(b) For the construction of the new street and street improvements authorised by this Act and the works incidental thereto - - - - -	47,028
(c) For the construction and electrical equipment of the tramway authorised by this Act - - - - -	18,930

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for

the city and for the county of Warwick respectively and are in this Act respectively referred to as the deposited plans sections and book of reference : A.D. 1929.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Birmingham Corporation (General Powers) Act 1929 and the Birmingham Corporation Acts 1876 to 1927 the Birmingham Corporation (Rivers Improvement) Act 1929 and this Act may be cited jointly as the Birmingham Corporation Acts 1876 to 1929. Short and collective titles.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Street improvements.

Part IV.—Tramways.

Part V.—Water.

Part VI.—Streets buildings and sanitary matters.

Part VII.—Town planning.

Part VIII.—Watercourses and streams.

Part IX.—Sale of coke &c.

Part X.—Savings and housing bank.

Part XI.—Finance.

Part XII.—Miscellaneous.

Division of Act into Parts.

3. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 is not incorporated with this Act;

A.D. 1929.

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

(2) Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II and III of the Tramways Act 1870 :

Provided that the following words in the said section 19 shall not apply to the Corporation namely “ but nothing in this Act contained shall authorise any “ local authority to place or run carriages upon such “ tramway and to demand and take tolls and charges in “ respect of the use of such carriages.”

Interpre-
tation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

- (a) “ The Corporation ” means the lord mayor aldermen and citizens of the city of Birmingham ;
- (b) “ The city ” means the city of Birmingham ;
- (c) “ The council ” means the council of the city ;
- (d) “ The town clerk ” “ the treasurer ” and “ the medical officer ” mean respectively the town clerk the treasurer and the medical officer of health of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices ;
- (e) “ The Lands Clauses Acts ” means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919 ;
- (f) “ The tribunal ” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 ;

- (g) "Corporation undertakings" means the water gas electricity tramway and markets undertakings of the Corporation; A.D. 1929. --
- (h) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;
- (i) "Daily penalty" means a penalty for each day on which any offence is continued by a person after conviction;
- (j) "The Minister" means the Minister of Health;
- (k) "The water limits" means the limits for the time being of the Corporation for the supply of water;
- (l) "The general rate" and "the general rate fund" mean respectively the general rate and the general rate fund of the city;
- (m) "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;
- (n) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

A.D. 1929.
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(o) "The Act of 1883" "the Act of 1903" "the Act of 1914" "the Act of 1919" and "the Act of 1922" mean respectively the Birmingham Corporation (Consolidation) Act 1883 the Birmingham Corporation Act 1903 the Birmingham Corporation Act 1914 the Birmingham Corporation Act 1919 and the Birmingham Corporation Act 1922.

PART II.

LANDS.

Power to
take lands.

5. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may respectively require for the purposes of the works authorised by this Act including the improvement and development of frontages or of the lands abutting on or adjacent to any street or for other the purposes of this Act.

Period for
compulsory
purchase
of lands.

6. The powers of the Corporation for the compulsory purchase of lands under the powers of this Part of this Act shall cease after the expiration of five years from the thirty-first day of October nineteen hundred and twenty-nine.

Benefits to
be set off
against
compensation.

7. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Part of this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or of the widening or improvement of any existing street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Power to
enter upon
property
for survey
and
valuation.

8. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing to the occupier enter upon and into the lands

and buildings by this Act authorised to be taken and used or any of them for the purposes of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. A.D. 1929.
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9. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act or which may be in the neighbourhood of any of the works authorised by this Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange. Power to reinstate owners of property.

10.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall be extinguished as from the date of the acquisition of such lands by the Corporation if the Corporation shall by resolution so determine and give notice in writing of such their resolution to the owner of any right of way referred to therein. Extinction of private rights of way.

(2) Provided that the Corporation shall make compensation to all persons interested in respect of any rights extinguished under the provisions of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

11. The provisions of section 106 (Power of entry on land acquired) of the Housing Act 1925 so far as they relate to lands acquired for the purposes of Part III of that Act shall apply to the lands which the Corporation are by this Part of this Act authorised to acquire as if those provisions were with the necessary alterations re-enacted in this Act. Further powers of entry.

12.—(1) The Corporation may lay out and develop any lands acquired by them under the powers of this Part of this Act and not required for the purposes of the new street and street improvements authorised by this Act and (with the consent of the Minister) any other lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect Power to develop lands.

A.D. 1929. — and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies at a price or rent or for a consideration of a value less than the current market value of such lands but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(5) Nothing in this section shall be taken to dispense with the necessity for obtaining the approval of the Minister or the Board of Education (as the case may be) to any alienation sale lease appropriation or other disposition of any lands acquired under any general Act for which such approval would be required but for the provisions of this section.

For pro-
tection of
Postmaster-
General.

13. Notwithstanding anything shown on the deposited plans or contained in this Act the Corporation shall not except with the consent in writing of the Postmaster-General acquire any interest of the Postmaster-General in any of the properties numbered 142 143 144 and 145 on the deposited plans relating to lands in the city or any part thereof.

PART III.

A.D. 1929.

STREET IMPROVEMENTS.

14.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter referred to together with all necessary or proper works and conveniences connected therewith or incidental thereto.

Power to
execute
street
improve-
ments.

(2) The works hereinbefore referred to will be wholly situate in the city and are—

Work No. 1 A widening of Ladypool Road on the east side commencing at a point 3·04 chains south of the centre line of Beechfield Road and terminating at Highgate Road;

Work No. 2 A widening of Ladypool Road on the west side commencing at the junction with Turner Street and terminating at the northern boundary of No. 77 Ladypool Road being 1·63 chains north of the centre line of Tillingham Street;

Work No. 3 A widening of Ladypool Road on the west side between Tillingham Street and Highgate Road;

Work No. 4 A new street commencing at Six Ways Erdington proceeding in a north-easterly direction and terminating by a junction with High Street Erdington at a point 1·6 chains south-west of the centre line of Station Road;

Work No. 5 A widening of Summer Road on the north-west side commencing at Reservoir Road and terminating at the north-east boundary wall in Summer Road of No. 1 Reservoir Road;

Work No. 6 A widening of Gravelly Hill North on the north-west side between Reservoir Road and a point 4 chains south of the centre line of Reservoir Road;

Work No. 7 A widening of Summer Road on the south-east side commencing at Coton Lane and terminating at the rear boundary fence of the properties fronting York Road which boundary is situate 2·9 chains from its commencement at Coton Lane.

A.D. 1929.

PART IV.

TRAMWAYS.

Power to
make
tramway.

15.—(1) Subject to the provisions of this Act the Corporation may make form lay down use and maintain the tramway hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turnouts crossings passing places posts poles brackets wires waiting-rooms carriage-houses sheds depôts buildings engines works and conveniences connected therewith.

(2) The tramway hereinbefore referred to will be situate in the city and is—

A tramway (double line 4 furlongs 2·42 chains in length) commencing at Six Ways Erdington by a junction with the existing tramway at a point 3·91 chains south-west of Reservoir Road thence proceeding along Summer Road and through the new street authorised by this Act and terminating by a junction with the existing tramway in High Street at a point 1·54 chains south of the centre line of Station Road.

(3) Upon the construction of the tramway authorised by this Act the Corporation may take up and remove so much of the existing tramway in High Street Erdington as is situate between its points of junction with the tramway authorised by this Act.

Works to
form part
of tramway
under-
taking.

16.—(1) The tramway and works authorised by this Part of this Act shall form part of the tramway undertaking of the Corporation and the provisions of Part III (Tramways) of the Act of 1903 (except sections 40 41 42 43 and 44 thereof) and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof respectively and the provisions of section 15 (Separate track not to form part of highway) of the Birmingham Corporation Act 1924 so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramway and works :

Provided that—

(a) no post or other apparatus shall be erected on any carriageway in connection with the tramway authorised by this Act without the consent of the Minister of Transport :

(b) the powers of subsection (1) of section 16 (Power to make additional cross-overs and to double tramway lines) of the Act of 1903 (except the powers thereof relating to cross-overs) and the powers of section 17 (Junction with tramways outside city) of that Act shall not be exercised with reference to the tramway authorised by this Act without the consent of the Minister of Transport. A.D. 1929.

(2) Subsection (b) (4) of section 22 (For protection of Postmaster-General) of the Act of 1903 shall be read and have effect as if the words "generated or used by or supplied to" were inserted in that subsection in substitution for the words "generated by."

(3) The provisions of section 11 (Use of tramway posts by Postmaster-General) of the Birmingham Corporation Act 1912 shall extend to the tramway authorised by this Act.

17. The tramway authorised by this Act shall be completed within two years from the date of the completion of works Nos. 4 5 6 and 7 authorised by Part III (Street improvements) of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing the said tramway shall cease except as to so much thereof as shall then be completed. Period for completion of tramway.

PART V.

WATER.

18.—(1) The agreement dated the sixteenth day of November nineteen hundred and twenty-eight made between the Corporation of the one part and the East Worcestershire Waterworks Company of the other part a copy of which is set forth in the First Schedule hereto is hereby confirmed and made binding on the parties thereto. Agreement with East Worcestershire Waterworks Company.

(2) The limits within which the East Worcestershire Waterworks Company are authorised to supply water are hereby extended so as to include the parishes of Alvechurch and Beoley in the rural district of Bromsgrove in the county of Worcester and the company shall have and may exercise in those parishes (which are in this Act referred to as "the added limits") the same

A.D. 1929. — powers rights privileges and authorities and shall be subject to the same obligations as they now have and may exercise or are subject to within their existing limits under the East Worcestershire Water Act 1877 and the East Worcestershire Water Act 1902 and any Act or Order having the effect of an Act amending the same.

Extension
of water
limits.

19. The limits within which the Corporation are authorised to supply water are hereby extended so as to include—

- (a) the parishes of Fillongley Great Packington Lea Marston Little Packington Maxstoke Nether Whitacre Over Whitacre and Shustoke in the rural district of Meriden in the county of Warwick;
- (b) the parish of Tanworth in the rural district of Solihull in the county of Warwick; and
- (c) that part of the parish of Cofton Hackett which is not already within the Corporation's limits for the supply of water and the parish of Frankley in the rural district of Bromsgrove in the county of Worcester;

and the enactments relating to the water undertaking of the Corporation and the supply of water by them shall have effect as if the said parishes and part of a parish (which are in this Act referred to as "the added limits") had been included in the Sixth Schedule to the Act of 1883.

Power to
local
authority
to supply
water in
case of
failure by
Corpora-
tion or
company.

20.—(1) If after the expiration of five years from the passing of this Act the Corporation or the East Worcestershire Waterworks Company (as the case may be) are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act throughout the district of any local authority within the added limits the local authority of that district may provide a supply in accordance with the provisions of the Public Health Act 1875 or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Corporation or the said company (as the case may be) and for the repeal of the powers of the Corporation or the said company in that behalf.

(2) If any difference shall arise between the Corporation or the said company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister. A.D. 1929.

21.—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Corporation may by agreement purchase take on lease and acquire any lands and may hold such lands and any other lands which the Corporation may have acquired for the purposes of their water undertaking so long as they shall deem it necessary or expedient for those purposes. Power to hold lands and exercise powers for protection of waters.

(2) The Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor without the approval of the Minister erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with their water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Corporation or appropriated by them for purposes other than purposes of the water undertaking of the Corporation.

(3) The Corporation may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road traversing the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 and of this Act with respect to the breaking up of streets for the purpose of laying pipes.

(4) The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any land with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such land

A.D. 1929. — or for more effectually collecting conveying and preserving the purity of the waters which the Corporation are for the time being authorised to take.

Prohibition
of throwing
offensive
matter &c.
into rivers.

22. If any person shall knowingly and wilfully discharge throw or put or cause or suffer to fall or flow into the rivers Blythe or Bourne above the points at which the Corporation are empowered to abstract water or into any river stream or watercourse through which any water may for the time being flow into those rivers above those points any offensive matter whether solid or fluid or any earth mud ashes dirt soil or refuse of any description so as either singly or in combination with other similar acts of the same or any other person to interfere with the proper flow of the water or to pollute the water he shall for every such offence be liable on summary conviction to a penalty not exceeding five pounds.

Guarantees
by district
councils.

23.—(1) Any urban or rural district council in respect of any part of their district which is within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any pipe or works for the supply of water within such part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act.

(3) When such money is raised by means of a rate in a rural district such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 (Provisions as to expenses of rural district councils) of the Local Government Act 1929.

24. Where a person who takes a supply of water for domestic purposes from the Corporation desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation shall be entitled to require that all water so used shall—

A.D. 1929.

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Charges for
supplies for
refrigerating
apparatus.

(a) be taken by meter and paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or

(b) be paid for at such rate as may be agreed between the consumer and the Corporation.

25.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if a hose-pipe or other similar apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

Charges for
hose-pipes.

Any sums chargeable under this subsection shall be paid quarterly in advance and be in addition to the rates for the time being authorised for the supply of water for domestic purposes and shall be recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hose-pipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

26. If in the opinion of the Corporation any waste of water or injury or risk of injury to any person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain it shall be lawful for the Corporation to execute such

Power to
Corporation
to repair
communica-
tion pipes.

A.D. 1929. — repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Corporation for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Corporation from the person by whom the water rates in respect of the premises supplied by means of such communication pipe are payable and shall be recoverable in the same manner as those rates :

Provided that (except in case of emergency) the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises and (if the water rates in respect of the house or premises are payable by the owner thereof) to such owner not less than twenty-four hours' previous notice of their intention so to enter.

PART VI.

STREETS BUILDINGS AND SANITARY MATTERS.

Crossings
over
footways.

27. Every person who—

- (a) forms a communication for vehicles across any kerbed or paved footpath; or
- (b) alters or interferes with any such footpath for that purpose

without complying with the provisions of section 58 (Crossing for horses or vehicles over footways) of the Act of 1903 shall (without prejudice to any penalty to which he may be liable) repay to the Corporation any expense incurred by them in the reinstatement or repair of the footpath.

Means of
escape from
buildings
in case
of fire.

28.—(1) Every building to which this section applies and which is erected after the passing of this Act shall be provided on each of the storeys the upper surface of the floor whereof is more than twenty feet above the level of the ground immediately in front of the face of such building with such means of escape in case of

fire for the persons dwelling sleeping or employed in or resorting to such upper storey as may reasonably be required by the Corporation in the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto. A.D. 1929.
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(2) If in the opinion of the Corporation a building to which this section applies (other than a building erected after the passing of this Act) is not provided on each of the storeys the upper surface of the floor whereof is more than twenty feet above the level of the ground immediately in front of the face of such building with proper and sufficient means of escape in case of fire for the persons dwelling sleeping or employed in or resorting to such upper storey the Corporation may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any building to which this section applies shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the means of escape as may reasonably be necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within fourteen days after the receipt of the requirement provided he give notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under either of the said subsections.

A.D. 1929.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) If the owner alleges that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and thereupon the court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable in all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(8) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(9) This section applies to every building—

(a) which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is more than twenty feet above the level of the ground immediately in front of the face of the building; and

(b) which is used or intended to be used—

(i) as flats; or

(ii) as a tavern hotel hospital boarding-house common lodging-house offices or school; or

(iii) for any purpose except a private dwelling-house if sleeping accommodation is or is intended to be provided in the building for persons employed in or about the same;

but shall not apply to any premises to which section 14 or section 15 of the Factory and Workshop Act 1901 applies.

(10) Section 20 of the Act of 1914 is hereby repealed and this section shall apply to every building to which that section applied and which has been erected since the passing of that Act as if it were erected after the passing of this Act: A.D. 1929.
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Provided that any certificate issued by the Corporation under the said section 20 shall be deemed to have been issued by the Corporation under this section.

29.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated larder or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Food
storage
accommo-
dation.

(2) (a) Every dwelling-house the erection of which was commenced but not completed before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated larder or other food storage accommodation and every existing dwelling-house shall where reasonably practicable be provided with sufficient and properly ventilated food storage accommodation and any owner who shall fail to provide with such larder or other accommodation any such dwelling-house which can reasonably be so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within fourteen days after the service of such notice provided he give notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

A.D. 1929.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to a court of summary jurisdiction and thereupon the court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable in all the circumstances of the case.

Further
provisions
as to
byelaws.

30. The matters with respect to which the Corporation may make byelaws under the provisions of section 157 of the Public Health Act 1875 or any Act amending the same shall include the provision of fixed baths in such classes of new dwelling-houses as may be prescribed in the byelaws.

Further
provisions
as to
working
class
houses.

31.—(1) For the purposes of Part I of the Housing Act 1925 any dwelling-house suitable for occupation by persons of the working classes the owner of which fails to keep such dwelling-house sufficiently repaired and painted and the interior surface of the walls thereof sufficiently papered or distempered with washable distemper of a suitable quality so as to prevent the dilapidation thereof and so as to secure reasonable amenities for the occupier or occupiers shall be deemed to be a house not in all respects reasonably fit for human habitation and the powers of the Corporation under the said Part I shall apply in respect of such dwelling-house accordingly.

(2) On an appeal to the Minister by the owner of a dwelling-house upon whom the Corporation have served notice under section 3 of the Housing Act 1925 in consequence of his failure to comply with the provisions of this section the Minister shall take into consideration—

- (a) if the owner upon whom the notice is served is a lessee the length of the unexpired period of his lease;
- (b) the period for which the dwelling-house is likely to continue occupied;
- (c) the expenditure incurred by the owner during the preceding three years upon the dwelling-house.

32. Section 27 (As to houses without water supply) A.D. 1929.
of the Act of 1914 is hereby amended as follows :—

- (a) By the substitution of “one-half” for “one-third” in paragraph (b) of subsection (2); and
(b) By the omission of the words “to a dwelling-house erected before the passing of this Act which has no scullery or” from paragraph (c) of subsection (2) :

—
Separate
water
service to
dwelling-
houses.

Provided that the Corporation shall not serve a notice under the said section 27 in respect of a dwelling-house which was erected before the passing of the Act of 1914 and which has no scullery except at the request in writing of the occupier or tenant thereof.

33. The obligation in section 68 (Corporation may order houses to be drained by a combined drain) of the Act of 1903 that two or more houses shall be drained by a combined drain may be imposed by the Corporation as a condition of approving the plans of such houses or of the drainage thereof and the said section 68 shall apply as if any condition so imposed were an order made under that section.

Combined
drainage.

34. All drawings plans elevations sections specifications and written particulars descriptions or details required to be deposited with the Corporation or any officer of the Corporation by any enactment for the time being in force in the city or any byelaws thereunder shall be deposited in duplicate and the Corporation may retain one of the copies so deposited.

As to plans
deposited
with Cor-
poration.

35.—(1) (a) No tent van shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the city without the previous approval of the Corporation.

Prohibition
of tents
vans &c.

(b) It shall not be lawful for any person without the previous approval of the Corporation to let or permit to be used any land for occupation by any tent van shed or similar structure used or intended to be used for human habitation unless and until such land is provided with sufficient roads and sewers and furnished with a separate supply of water to the satisfaction of the Corporation.

A.D. 1929.

(c) Land furnished in compliance with this subsection with a separate supply of water shall be deemed to be a house for the purposes of the provisions relating to the supply of water for domestic purposes.

(2) Any person aggrieved by the withholding by the Corporation of any approval under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court of summary jurisdiction provided he give notice of such appeal and of the grounds thereof to the town clerk before lodging the appeal and such court may make such order on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to—

(a) a tent van shed or similar structure which is not used or intended to be used by the occupier as a sole or principal means of habitation for an unbroken period of at least three months; or

(b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stall-holder not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Penalty for failure to carry out work until after issue of summons.

36. In any proceedings under the Public Health Acts for the abatement of a nuisance to which the provisions of section 91 of the Public Health Act 1875 apply if the person on whom a notice to abate a nuisance has been served delays making compliance with any of the requisitions thereof until after a summons has been issued requiring him to appear before a court of summary jurisdiction the court in addition to any other powers conferred upon them by the said Acts may if satisfied that the alleged nuisance existed impose a penalty not exceeding five pounds on the person on whom the notice was served notwithstanding that the nuisance is abated.

37.—(1) The alteration of a dwelling-house so that it becomes a shop or a building other than a dwelling-house shall be deemed to be the erection of a building other than a dwelling-house for the purposes of any scheme for the time being in force in the city made in pursuance of the Town Planning Act 1925 or any Act repealed by that Act.

A.D. 1929.
 —
 Conversion of dwelling-houses into shops.

(2) The provisions of this section shall have effect as if it were incorporated in and formed part of any such scheme as aforesaid and a copy of this section shall be deposited with every such scheme at the office of the town clerk.

38.—(1) If the medical officer certifies in writing that any person—

Removal of infirm and diseased persons in certain cases.

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease; and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and for preventing injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital infirmary poor law or other institution or other suitable place provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be determined by any further order or orders made under and in accordance with the provisions of this section.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this

A.D. 1929. — section or to some person being in charge of such person three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation and during any period for which a person is so detained the Corporation may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the court as the case may be.

(4) An order under this section may be addressed to such officer of the Corporation or to such constable as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the council so to do either generally or in any particular case in which those powers are proposed to be exercised.

Saving for
railway and
canal
companies.

39. Nothing in this Part of this Act except the sections whereof the marginal notes are—

Crossings over footways;

Prohibition of tents vans &c.;

A.D. 1929.

Penalty for failure to carry out work until after issue of summons; and

Conversion of dwelling-houses into shops;

shall extend or apply to any building (not used as a dwelling-house) railway canal or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway or canal company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway canal work or land is used by such company for railway or canal purposes.

PART VII.

TOWN PLANNING.

40. The Corporation may at any time and from time to time make a town planning scheme or town planning schemes with respect to any area in the city notwithstanding that the land in that area or any part thereof is developed at the time of the making of such scheme and the provisions of the Town Planning Act 1925 (in this Part of this Act referred to as "the Act of 1925") shall subject to the provisions of this Part of this Act apply to the making of any such scheme and to any such scheme when made.

Power to make town planning schemes with reference to developed lands.

41. For the prevention of doubt be it enacted that paragraph (d) of subsection (2) of section 5 of the Act of 1925 (which relates to the suspension of statutory enactments) shall not apply to the provisions contained in this Part of this Act.

Explanation of section 5 of Act of 1925.

42. The purposes for which land may be purchased under a town planning scheme made pursuant to this Part of this Act shall include the purpose of securing the development or re-development of land in accordance with any provisions of the scheme where it appears to the Corporation that there would be difficulty in securing such development or re-development in accordance with those provisions by reason of the land concerned being used in a manner at variance therewith or being held in parcels or plots of inconvenient size shape or arrangement:

Purposes for which land may be purchased for town planning schemes under this Part of Act.

A.D. 1929.

— Provided that the Corporation shall not under a town planning scheme made pursuant to this Part of this Act purchase otherwise than by agreement any land abutting on a new street or an existing street as proposed to be widened under such scheme for the purpose of securing the development or re-development of such land.

As to
properties
of which
parts only
are required
for town
planning
schemes.

43.—(1) Section 92 of the Lands Clauses Consolidation Act 1845 shall not be incorporated in any order made under section 8 of the Act of 1925 authorising the Corporation to purchase lands compulsorily for the purposes of any town planning scheme made pursuant to this Part of this Act but if the owner of or any person interested in any house or other building or manufactory in respect of which the Corporation have served upon him notice to treat for a specified portion only shall within twenty-one days after the service of such notice by notice in writing to the Corporation allege that such specified portion cannot be severed from the remainder of the property without material detriment thereto the arbitrator to whom any question of disputed compensation is referred under any such order (in this section referred to as “the arbitrator”) shall in addition to the other questions required to be determined by him determine whether the said specified portion of the property can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion for which the Corporation have compulsory powers of purchase) can be so severed.

(2) If the arbitrator determines that the portion of the property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto such owner or other person as aforesaid may be required to sell and convey to the Corporation the portion so determined to be severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner or other person by severance or otherwise as shall be awarded by the arbitrator.

(3) If the arbitrator determines that the portion of the property specified in the notice to treat can notwithstanding the allegation of such owner or other person as

aforesaid be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by such owner or other person incident to the determination of any matters under this subsection shall be borne and paid by such owner or other person. A.D. 1929.
—

(4) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice.

(5) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

(6) The provisions of this section shall be stated in every notice given under any such order as aforesaid to sell and convey any premises.

44.—(1) The provisions of paragraph (2) of Part II of the Third Schedule to the Act of 1925 shall not apply in relation to any scheme made under this Part of this Act except in so far as they relate to any land which has been acquired by any company for the purpose of a railway dock or canal but the Corporation shall not be entitled to purchase compulsorily any land which is the property of any local authority or has been acquired by any company body or person for the purposes of a water or other public undertaking without the consent of such local authority company body or person but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister. Restriction on rights of purchase in certain cases.

A.D. 1929.

(2) The Corporation shall not be entitled to purchase compulsorily any land which at the date of the Order authorising the compulsory acquisition of the land forms part of any park garden or pleasure ground or is otherwise required for the amenity or convenience of any house without the consent of the owner of such land but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be referred to and determined by an arbitrator to be appointed (failing agreement) by the President of the Surveyors' Institution and the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Limitation
on require-
ments under
scheme.

45. No provisions in any such town planning scheme as aforesaid prescribing the space about buildings or limiting the number of buildings to be erected or prescribing the height or character of buildings within the meaning of subsection (2) of section 11 of the Act of 1925 shall operate so as—

- (a) to require the demolition removal or alteration of any building existing at the date of the approval of the scheme by the Minister or of which the erection was commenced before that date; or
- (b) to affect the user of any building for any purpose for which the same was used at the said date unless the person entitled to the user of the building shall after that date (i) commence to use such building for any purpose other than that purpose or (ii) voluntarily cease for a continuous period of six months or upwards to use such building for any purpose.

Modifica-
tions of
section 10
of Act of
1925.

46. For the purposes of subsection (2) of section 10 of the Act of 1925 the date of the approval by the Minister of a town planning scheme under this Part of this Act shall be substituted for the several dates referred to in that subsection.

Compulsory
purchase
and
injurious
affection of
lands.

47. Any person who has any interest in property which is acquired compulsorily for the purposes of or in connection with or is injuriously affected by a town planning scheme made pursuant to this Part of this Act whether as owner mortgagee lessee under-lessee or

occupier thereof (including an interest in any trade or business carried on thereon) shall be entitled to compensation under the provisions relating to the compulsory acquisition of land contained in the Act of 1925. A.D. 1929.

PART VIII.

WATERCOURSES AND STREAMS.

48.—(1) No person shall within the city cast or deposit or cause to be cast or deposited any stone gravel soil refuse or other solid matter whatsoever (in this section referred to as “solid matter”) into any river or stream so as to tend either directly or in combination with similar acts of the same or other persons to impede the proper flow of water in such river or stream. Prohibiting throwing of refuse &c. into rivers and streams.

Any person offending against the provisions of this subsection shall be liable to a penalty not exceeding five pounds.

(2) If any person shall cast or deposit or cause to be cast or deposited any solid matter upon the bank or banks of such river or stream in such position as to render it reasonably probable that the same may fall or be washed into such river or stream the Corporation may serve notice upon such person requiring him to remove such solid matter or to comply with such conditions as the Corporation may prescribe in order to prevent the same from falling or being washed into the river or stream and in default of compliance with the requirements of such notice within one month from the service thereof the Corporation may cause such person to be summoned before a court of summary jurisdiction to show cause why such requirements should not be complied with and upon the Corporation satisfying the court that it is reasonably probable that such matter may fall or be washed into the river or stream the court may order such person to remove the same or comply with all or any of the requirements of the notice within a time to be specified in the order not exceeding one month from the date thereof and to pay to the Corporation their reasonable costs in the matter to be ascertained by the court and specified in the order and if such person disobey such order he shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings and the Corporation may on such default if they think fit

A.D. 1929. (without prejudice to any such penalties) do the work required by the order and recover the expenses thereof from the person in default.

(3) For the purposes of this section particles of matter in suspension in water arising from coal washing or coke cooling shall not be deemed to be solid matter provided that the best practicable and reasonably available means of removing such matter have been used.

(4) The provisions of this section shall be in addition to and may be enforced by the Corporation independently of the provisions of the Rivers Pollution Prevention Act 1876 and of section 47 of the Public Health Acts Amendment Act 1890.

Restrictions
as to
buildings
&c. over
streams.

49.—(1) Except in the exercise of statutory powers in that behalf no person shall at any time hereafter erect construct or place or cause or permit to be erected constructed or placed in or directly over the waterway or bed of any stream any building structure erection bridge arch culvert pipe or other work or thing (in this section referred to collectively as “work”) which will or may have the effect of reducing the waterway or bed of such stream or of interfering with the free passage of water along such stream or reconstruct or alter any work erected constructed or placed in or directly over the waterway or bed of any stream before or after the passing of this Act in such manner that such reconstruction or alteration will have any such effect except in each case in accordance with plans sections and particulars previously approved by the Corporation or by an arbitrator appointed as in this section provided :

Provided that—

(a) no requirement of the Corporation in relation to such plans sections and particulars shall operate to compel any such person to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted ;

(b) if with the consent of any such person the Corporation shall require him to make provision for the passage of a larger quantity of

water than he is obliged to permit to pass at the time of the commencement of the work any additional cost occasioned by such requirement shall be borne by the Corporation. A.D. 1929.

(2) If the Corporation shall not within six weeks after the delivery of the plans sections and particulars signify in writing their approval or disapproval of any intended work or of the intended reconstruction or alteration of any existing work (as the case may be) to the person who shall have delivered such plans sections and particulars with in the case of disapproval their reasons for such disapproval they shall be deemed to have approved the said plans sections and particulars.

(3) The Corporation may attach to their approval any condition which they may deem proper and any such condition shall be binding on the owner for the time being of the land to which it relates.

(4) If the Corporation disapprove of the plans sections and particulars or if any difference shall arise as to the reasonableness of any condition which the Corporation may attach to their approval the plans sections and particulars or any such difference shall be referred to an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of the person who delivered the plans sections and particulars or of the Corporation and any such arbitrator shall determine such difference and may approve the said plans sections and particulars with or without modifications or disapprove the same as he shall determine.

(5) If any such work or the re-construction or alteration of any such existing work is commenced or completed without such approval of the Corporation or of an arbitrator as is required by this section or in any respect otherwise than in conformity with such approval or with any condition attached to such approval the person who commenced or completed the same or caused or permitted the same to be commenced or completed shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings and on conviction of any person under this section the court may make such order with regard to the removal reinstatement or modification of the work as in the

A.D. 1929. — circumstances of the case the court may think fit and in default of compliance with such order by the person to whom the same is directed the Corporation may (without prejudice to the liability to any such penalties or to any other remedy or proceeding) cause such work to be pulled down and removed or reinstated as the case may be and any expense incurred by them in or about the pulling down and removal or reinstatement of the work may be recovered from the person to whom the said order of the court is directed.

(6) Nothing in this section contained shall be deemed to affect the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1926.

Improve-
ment of
streams. **50.** In cases of emergency the Corporation may exercise the powers of section 35 (Further provision as to rivers) of the Act of 1914 otherwise than in the day-time.

PART IX.

SALE OF COKE &C.

Application
to sale of
coke of
Weights and
Measures
Act 1889. **51.** The provisions of sections 20 to 29 of the Weights and Measures Act 1889 and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the city.

Penalty on
fraudulent
sale. **52.** If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke in any sack or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

Proceedings
under
Part IX
of Act. **53.** Any inspector of weights and measures may with the consent of the Corporation prosecute before a court of summary jurisdiction any proceedings under or in pursuance of this Part of this Act.

Application
of Part IX. **54.** The provisions of this Part of this Act relating to coke shall apply also to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke.

55.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the city. A.D. 1929.
—
Notice to be given.

(2) Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

PART X.

SAVINGS AND HOUSING BANK.

56.—(1) The Corporation may make advances upon the security of freehold or leasehold estate by way of mortgage to any depositor in the savings bank established in pursuance of the Act of 1919 (in this Part of this Act referred to as “the bank”) who desires to purchase or acquire land within the city for the purposes of an allotment and for this purpose shall have power to hold land with the right of foreclosure subject however to the conditions prescribed in subsection (3) of section 7 (Assistance in providing housing accommodation) of the Act of 1919. Advances for purchase of allotments.

(2) The Corporation may for the purposes of this section utilise and invest the funds of the bank.

57.—(1) With the consent of the local authority of any area adjoining the city and upon such terms and conditions (if any) as may be agreed between the Corporation and such local authority the Corporation may establish and maintain in such area a branch savings bank with or without a housing department to such bank as they may think fit and the powers duties and obligations conferred and imposed upon the Corporation under Part III of the Act of 1919 and this Act and under the regulations made under the Act of 1919 shall apply to any branch bank established under this section and to dwelling-houses and land situate in the area in which such branch bank is established. Establish-ment of branch banks.

(2) Any expenses incurred by a local authority under this section shall be deemed to be expenses incurred in the execution of the Public Health Acts.

A.D. 1929.

PART XI.

FINANCE.

Power to
borrow.

58.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay money so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

(1)	(2)	(3)
Purpose.	Amount.	Period for repayment.
(a) The purchase of lands and buildings for the purposes of this Act.	£ 60,666	Sixty years from date or dates of borrowing.
(b) The construction of the new street and street improvements authorised by this Act and the works incidental thereto.	47,028	Thirty years from date or dates of borrowing.
(c) The construction and electrical equipment of the tramway authorised by this Act.	18,930	Twenty years from date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the purposes of this Act other than those of Part IV (Tramways) and may with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of the said Part IV.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed.

(3) The yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of this Act shall be defrayed out of the general rate fund.

59. Section 66 (Power to borrow) of the Act of 1922 shall be read and have effect as though for the sum of four hundred and ninety-eight thousand six hundred and thirty-two pounds appearing in the second column of the table therein set forth there were substituted the sum of five hundred and ninety-eight thousand six hundred and thirty-two pounds.

A.D. 1929.

—
 Amendment
 of section 66
 of Act of
 1922.

60. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the general rate fund.

Expenses of
 execution of
 Act.

61.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by the issue of bonds (to be called “Birmingham Corporation bonds” and in this Act referred to as “bonds”) in accordance with the provisions of this Act.

Power to
 borrow by
 issue of
 bonds.

(2) The provisions set out in the Second Schedule to this Act shall have effect with regard to bonds.

(3) All bonds issued under this Act shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of issue of the bonds or on any other ground whatsoever and shall also rank equally with and have the same status as all other securities issued by the Corporation after the passing of the Birmingham Corporation (Stock) Act 1900.

62.—(1) Notwithstanding anything contained in any previous Act or Order all money received by the Corporation on account of the revenue of each of the Corporation undertakings (including the income of any reserve fund formed for the purpose of such undertaking) shall be carried to and form part of the general rate fund and all payments and expenses made and incurred in respect of such undertaking including—

Revenue
 and
 expenses of
 Corporation
 under-
 takings.

- (a) the appropriate sums of principal required to be set apart for or paid into a sinking fund redemption fund or loans fund for the purpose of providing for the repayment of money borrowed;
- (b) any sum which the Corporation may determine to set aside for the purposes of a reserve fund under the powers of their existing Acts or this Act; and

A.D. 1929.

(c) any expenditure which if this section had not been enacted could have been defrayed out of the revenue of such undertaking; shall be paid out of the general rate fund.

(2) Provided that—

(a) In every year in which the income of a reserve fund is carried to the general rate fund in pursuance of this section such reserve fund shall be increased by a sum equal to the amount of such income if and so far as the amount of the fund for the time being is less than the prescribed maximum; and

(b) In every year the Corporation shall appropriate from the general rate fund a sum equivalent to the net surplus revenue and the annual proceeds of the reserve fund of the electricity undertaking of the Corporation when such fund amounts to the limit prescribed by section 7 (1) (e) of the schedule to the Electric Lighting (Clauses) Act 1899 and the sum so appropriated shall not be applied or disposed of otherwise than in accordance with the provisions of section 43 of and the Fifth Schedule to the Electricity (Supply) Act 1926.

(3) Nothing in this section shall interfere with or prejudicially affect the rights and priorities existing at the passing of this Act of the holders of gas annuities granted by the Corporation under the Birmingham (Corporation) Gas Act 1875 and of water annuities granted by the Corporation under the Birmingham (Corporation) Water Act 1875.

Accounts.

63.—(1) The Corporation shall continue to keep separate accounts in respect of each of the Corporation undertakings distinguishing therein capital from revenue and shall show under a separate heading or division all receipts and all payments and expenses in respect of the undertaking such payments and expenses being divided so as to show in each case the amounts expended in respect of each of the purposes to which the revenue would have been applied if the last preceding section of this Act had not been enacted.

(2) The Corporation shall so far as reasonably practicable apportion between the accounts kept in pursuance of this section any receipts credits payments and liabilities which ought to be so apportioned. A.D. 1929. —

64. As from the thirty-first day of March nineteen hundred and thirty the following provisions shall be substituted for the paragraph "Seventh" of section 163 (Account and application by Corporation of gas revenue) of the Act of 1883 (namely) :— Gas reserve fund.

"Seventh (a) In providing a reserve fund (if the Corporation think fit) by setting aside such money as they may from time to time think reasonable ;

(b) The Corporation may (if they think fit) invest the reserve fund and the resulting income thereof in statutory securities or may place not more than fifty thousand pounds on deposit with their bankers and accumulate the same at compound interest ;

(c) The amount of the reserve fund or of the investments representing the same shall not exceed the sum of two hundred thousand pounds and when it amounts to that sum the income thereof shall be dealt with as part of the revenue of the gas undertaking of the Corporation ;

(d) The reserve fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect thereof and so that if the fund be at any time reduced it may thereafter be again restored to the maximum of two hundred thousand pounds."

65. The charges to be made by the Corporation for gas supplied by them shall after the thirty-first day of March nineteen hundred and thirty-three be not more than sufficient so far as can be estimated to enable the gas undertaking of the Corporation to be carried on without loss after providing for the several matters set out in the seven numbered paragraphs of section 163 of the Act of 1883 as amended by this Act and in section 68 (Application of revenues of undertakings) of the Act of 1922. Gas charges.

A.D. 1929.

—
Applica-
tion of
section 79
of Public
Health
Act 1925.

66. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund a loans fund or a redemption fund for the purpose of paying off moneys borrowed by the Corporation in the exercise of any statutory borrowing power or for the redemption or purchase of stock issued for the purpose of raising such moneys as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875.

Repeal of
section 235
of Act of
1883.

67. Section 235 of the Act of 1883 (which relates to the accounts of receipts and expenditure under that Act) shall cease to have effect.

Consolidated
loans fund.

68.—(1) Notwithstanding anything contained in any Act or Order on and after the thirty-first day of March nineteen hundred and thirty the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received (except such moneys as have been

borrowed from the Public Works Loan Commissioners) and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established. A.D. 1929.
—

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and
- (c) in the payment of dividends and interest on the stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation as defined in section 4 (Interpretation) of the Act of 1903 and shall rank equally one with the other without any priority whatsoever.

(4) Nothing in this section shall prejudice the rights and priorities existing at the passing of this Act of the holders of gas annuities granted by the Corporation under the Birmingham (Corporation) Gas Act 1875 and of water annuities granted by the Corporation under the Birmingham (Corporation) Water Act 1875.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

A.D. 1929.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Special
fund.

69.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the city and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purpose of the gift are purposes for which the Corporation are empowered to expend money raised from the general rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject-matter of the gift.

(2) This section shall not extend to property relating to the affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer and shall be made up and audited as part of the general accounts of the Corporation.

Use of
moneys
forming part
of sinking
and other
funds.

70. Notwithstanding anything contained in any other Act or Order the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part of but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals contingent superannuation or insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions:—

(1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable:

Provided that the Corporation shall repay to the lending fund the moneys so used or the

balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

A.D. 1929.
—

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage or by the issue of bonds under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

71.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to
Minister
with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered

A.D. 1929. by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4). Any provision now in force in the city requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Gas and
water
annuity
registers.

72.—(1) The Corporation shall keep two registers to be called respectively “the register of gas annuities” and “the register of water annuities” in which shall be entered the names and addresses of the persons for the time being entitled to the annuities issued by the Corporation in pursuance of section 7 (Provisions respecting annuities to individual shareholders of the Staffordshire Company) of the Birmingham (Corporation) Gas Act 1875 and section 9 (Grant of annuities to shareholders) of the Birmingham (Corporation) Water Act 1875 with a statement of the amount of the annuities held by each person registered.

(2) Section 24 of the Local Loans Act 1875 (which relates to the inspection of the register kept in pursuance of that Act and to copies and extracts thereof) shall apply to the registers kept in pursuance of this section.

(3) The registers kept in pursuance of this section shall be *primâ facie* evidence of any matter entered therein in accordance with this section and of the title of the persons entered therein as entitled to the said annuities. A.D. 1929.
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(4) Until new registers are prepared for the purposes of this section the registers kept by the Corporation in pursuance of section 9 of the Companies Clauses Consolidation Act 1845 as applied by the Acts mentioned in subsection (1) of this section shall be deemed to be the registers kept in pursuance of this section.

(5) Section 9 of the Companies Clauses Consolidation Act 1845 shall cease to be incorporated with the Acts mentioned in subsection (1) of this section or to apply to the Corporation in respect of the annuities issued thereunder.

PART XII.

MISCELLANEOUS.

73. Paragraph (iv) of subdivision (3) of article XXVI of the Birmingham (Extension) Order 1911 which was confirmed by the Local Government Board's Provisional Order (1910) Confirmation (No. 13) Act 1911 shall not apply to the fees to be received by the Corporation in respect of services rendered by any minister of religion in the burial ground transferred to the Corporation from the Yardley Burial Board and the table of fees to be received by the Corporation in respect of services rendered by any minister of religion in the other burial grounds of the Corporation shall extend and apply to the burial ground transferred to the Corporation as aforesaid. Minister's fees in Yardley burial ground.

74. The Council may at any time after the passing of this Act by resolution determine that as from the first day of April following the passing of such resolution (in this section referred to as "the appointed day") the following provisions shall have force and effect:— Fire brigade superannuation fund.

(1) In this section—

"the superannuation fund" means the fire brigade superannuation fund to be established in pursuance of this section;

A.D. 1929.

“the fire brigade” means the permanent fire brigade of the city;

“actuary” means a fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland:

(2) There shall be established and administered by the Corporation a fire brigade superannuation fund to which shall be carried and credited in each year—

(a) the rateable deduction of five per cent. from the pay of every member of the fire brigade made in pursuance of section 19 of the Police Pensions Act 1921 as applied by section 80 of the Act of 1922 and as amended by the Police Pensions Act 1926;

(b) the whole or part as the Corporation may think fit of any sum or sums of money paid to the Corporation by any person for or in respect of the services of the fire brigade together with such further sum or sums as may be necessary to make the total equal to ten per cent. of the pay of every member of the fire brigade;

(c) all dividends and interest arising in such year out of the investment or use of the superannuation fund or any part thereof;

(d) such amount as may be certified by an actuary as necessary from the appointed day in order that the superannuation fund may be solvent to be calculated so as to cast upon the Corporation so far as may be an equal annual charge for a period not exceeding forty years from the appointed day;

The superannuation fund shall be substituted for the police fund for the purposes of the provisions of the Police Pensions Act 1921 as applied to the fire brigade:

(3) All payments to members of the fire brigade or their widows children or dependants under this section or under section 80 (Application of Police Pensions Act 1921 to fire brigade) of the Act of 1922 and all payments to be made by

A.D. 1929.
—

the Corporation in consequence of subsection (8) of this section and all payments which would have been made out of the fire brigade pension fund of the Corporation if this section had not been put into operation shall be paid out of the superannuation fund:

- (4) The amount standing to the credit of the fire brigade pension fund of the Corporation immediately before the appointed day shall be carried to the superannuation fund:
- (5) All sums which by subsection (5) of section 80 of the Act of 1922 are directed to be carried to the fire brigade pension fund (other than dividends and annual sums received in respect of investments) shall as from the appointed day be carried to the credit of the general rate fund:
- (6) (a) Once at least in every five years the condition of the superannuation fund shall be submitted by the Corporation to an actuary who shall consider the same and shall make an actuarial valuation of the assets and liabilities of the superannuation fund;
(b) Where on any such valuation the actuary certifies that a deficiency or disposable surplus is disclosed the Corporation shall make good the deficiency by means of payments into the superannuation fund or by means of an increase in the Corporation's contributions or make provision for disposing of the surplus by reducing those contributions:
- (7) The provisions of sections 20 and 21 of the Local Government and other Officers' Superannuation Act 1922 (which relate to the use of money in a superannuation fund and the investment of surplus income) shall apply to the superannuation fund:
- (8) Notwithstanding anything contained in paragraph (b) of subsection (1) of section 24 of the Fire Brigade Pensions Act 1925 section 7 (Continuous service in two or more fire brigades) of that Act shall apply to the members of the fire brigade:

A.D. 1929.

(9) On the appointed day subsections (5) (6) (7) (8) and (9) of section 80 of the Act of 1922 shall be repealed.

Superannua-
tion of
Monyhull
Colony
teachers.

75. Where any person who is or shall be or at any time since the first day of April nineteen hundred and twenty-six has been in the service of the Birmingham Board of Guardians at Monyhull Colony Moseley in the city as a school teacher makes a declaration in the cases of existing and former teachers within three months of the passing of this Act and in other cases within three months of the date of appointment that he desires such service to be excepted from the provisions of the Poor Law Officers' Superannuation Act 1896 the provisions of that Act shall not apply in respect of such service and he shall be deemed to be or to have been during such service employed in service in respect of which contributions are not payable under the Poor Law Officers' Superannuation Act 1896 and any contribution made by him under sections 12 and 13 of that Act in respect of such service shall be repaid to him by the Birmingham Board of Guardians.

Medicated
and other
baths.

76. The Corporation may erect construct provide maintain furnish equip regulate and manage medicated and other baths (including baths the efficient properties of which are due to agencies other than water) and they may demand and take such reasonable charges for the use thereof as they may think fit.

Appliances
in wash-
houses.

77. The Corporation may install fit up maintain renew use and work mechanical washers mechanical wringers box mangles and other mechanical and time-saving appliances in or in connection with any of their public baths or washhouses for the use convenience or assistance of persons resorting thereto and may make such charges for or in respect of the use of such appliances as the Corporation may determine :

Provided that nothing in this section shall authorise the Corporation to carry on the business of a launderer or to permit the proprietors or part proprietors or the duly authorised representatives of firms or corporate bodies who are proprietors or part proprietors of a laundry dyeing or cleaning business to make use of any such appliances as aforesaid for the purpose of their trade or business.

78.—(1) Any person who knowingly delivers or passes off or who knowingly causes or permits to be delivered or passed off with or in connection with a particular vehicle or the loading thereof any ticket which has been issued by a person keeping or acting as a keeper of a weighing machine to denote the weight of a different vehicle or loading shall be liable to a penalty not exceeding five pounds.

A.D. 1929.
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 Public weighing machines.

(2) Any person in charge of a vehicle who in regard to the weighing of such vehicle at any weighing machine refuses after being requested so to do by any person keeping or who acts as a keeper of the weighing machine to give his name and address and the names and addresses of the consignor and consignee of the load or who wilfully gives an incorrect name or address shall be liable to a penalty not exceeding five pounds.

79. The provisions of the Town Police Clauses Act 1847 shall extend to empower the Corporation to make byelaws for declaring that to the extent determined by such byelaws those provisions and the byelaws of the Corporation in force with respect to hackney carriages except so much of such byelaws as relates to the fixing of fares shall apply to every horse-drawn or motor vehicle standing or plying for hire notwithstanding that such vehicle stands or plies for hire on private premises only :

Provisions as to motor and other vehicles let for hire.

Provided that this section shall not apply to any such vehicle which is kept and used ordinarily for the purpose of being let on hire by the day or for longer periods of hire or for journeys under special contract or to an omnibus as defined in the Town Police Clauses Act 1889 or to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or railway premises or to the drivers or conductors of such vehicles.

80.—(1) Any licence granted by the justices acting for the city under any of the following Acts (namely):—

- (a) The Theatres Act 1843;
- (b) The Gaming Act 1845;
- (c) The Cinematograph Act 1909;

Licence for stage plays billiards and cinematograph.

or under any Act amending those Acts may be sealed or stamped with the official seal or stamp in such form

A.D. 1929. as the justices may direct such seal or stamp being
— verified in each case by the signature of their clerk in lieu
of being under the hands of such justices or a majority
of such justices.

(2) Any such licence purporting to be sealed or
stamped and verified as aforesaid shall be received in
evidence without further proof.

British
Industries
Fair.

81. Subject to such conditions relating to the
participation of the Corporation in the management or
control of the undertaking or the representation of the
Corporation on the responsible executive body thereof
as may be agreed the Corporation may lend money on
such security as they may consider adequate towards the
capital and maintenance expenses incurred or to be
incurred in maintaining extending or improving the
British Industries Fair established in or in the neighbour-
hood of the city and controlled by the Birmingham
Chamber of Commerce (Incorporated):

Provided that the money so lent and for the time
being outstanding shall not at any time exceed in the
aggregate twenty-five thousand pounds.

Power to
establish
information
bureau.

82. The Corporation may within the city establish
and maintain an information bureau for the purpose of
supplying information with regard to the city and
neighbourhood and may employ and pay such number of
clerks assistants and servants as they may think fit for
the purpose and may if they think fit make charges for
the use of such bureau or for information supplied by
means thereof.

As to
appeal.

83. Any person deeming himself aggrieved by any
order judgment determination or requirement or the
withholding of any certificate licence consent or approval
of or by the Corporation or of or by any officer of the
Corporation under the provisions of Part VI (Streets
buildings and sanitary matters) of this Act or by any
conviction or order made by a court of summary jurisdic-
tion under any provision of this Act may if no other
mode of appeal is provided by this Act appeal to the
next practicable court of quarter sessions under and
according to the provisions of the Summary Jurisdiction
Acts and in regard to any such order made by a court of
summary jurisdiction the Corporation may in like
manner appeal.

84. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

A.D. 1929.
 —
 Consents of Corporation to be in writing.

85.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries by Minister of Health.

(2) The Corporation shall pay to the Minister any expenses incurred by him in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

86. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act :

Saving for indictments &c.

Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

87.—(1) The following provisions so far as the same are applicable in that behalf shall with any necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act (namely):—

Application of existing enactments.

The Act of 1883—

- Section 8 (Power to appoint committees);
- Section 9 (Proceedings of committees);
- Section 284 (Provision in case of occupier opposing execution of Act);
- Section 289 (Protection of members and officers of Corporation);
- Section 294 (Powers of Act cumulative).

A.D. 1929.

The Act of 1903—

- Section 156 (Byelaws);
- Section 169 (Crown rights).

Birmingham Corporation Act 1905—

- Section 23. (Subsidiary works);
- Section 24 (Temporary stoppage of streets);
- Section 27 (Correction of errors in deposited plans and books of reference);
- Section 30 (Power to persons under disability to grant easements &c.);
- Section 31 (Owners may be required to sell parts only of certain lands and buildings);
- Section 41 (Moneys to be raised);
- Section 44 (Audit of accounts).

The Act of 1914—

- Section 14 (Power to alter steps areas pipes &c.);
- Section 15 (Limits of deviation);
- Section 61 (Compensation in case of recently acquired interests);
- Section 65 (Recovery of demands);
- Section 66 (Informations by whom to be laid);
- Section 67 (Recovery of penalties &c.);
- Section 68 (Damages and charges to be settled by justices); and
- Section 69 (Judges not disqualified).

(2) Provided that—

- (a) Section 284 of the Act of 1883 shall apply only to the provisions of Part VI (Streets buildings and sanitary matters) of this Act;
- (b) In the application of section 31 of the Birmingham Corporation Act 1905 the premises numbered 1 3 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 37 38 39 40 41 42 45 53 54 58 59 60 65 79 82 99 100 108 121 123 134 147 148 149 153 154 and 156 respectively on the deposited plans shall be deemed to be referred to instead of the premises described in the Second Schedule to that Act;

- (c) In the application of section 61 of the Act of 1914 the twentieth day of November nineteen hundred and twenty-eight shall be deemed to be referred to instead of the eighteenth day of November nineteen hundred and thirteen. A.D. 1929. —

88. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of money to be borrowed for that purpose. Costs of Act.

A.D. 1929.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

AGREEMENT WITH THE EAST WORCESTERSHIRE
WATERWORKS COMPANY.

An AGREEMENT made the sixteenth day of November one thousand nine hundred and twenty-eight between the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BIRMINGHAM (hereinafter called "the Corporation") of the one part and the EAST WORCESTERSHIRE WATERWORKS COMPANY (hereinafter called "the Company") whose registered office is situate at Colmore House 21 Waterloo Street Birmingham of the other part.

WHEREAS the Corporation are desirous of including within their area of water supply the parishes of Fillongley Great Packington Lea Marston Little Packington Maxstoke Nether Whitacre Over Whitacre and Shustoke in the rural district of Meriden in the county of Warwick the parish of Tanworth in the rural district of Solihull in the county of Warwick and that part of the parish of Cofton Hackett which is not included in the Corporation's existing limits for the supply of water and the parish of Frankley in the rural district of Bromsgrove in the county of Worcester :

And whereas the Company are desirous of including within their area of water supply the parishes of Alvechurch and Beoley in the rural district of Bromsgrove in the county of Worcester :

And whereas the Corporation intend to promote a Bill in Parliament to give effect to the before-recited proposals :

And whereas at the present time the Company supply portions of the said part of the parish of Cofton Hackett at Kendall End and the Corporation supply portions of the said parish of Alvechurch :

Now it is hereby agreed as follows :—

1. The Company will give all assistance to the Corporation towards the passing of the said Bill.

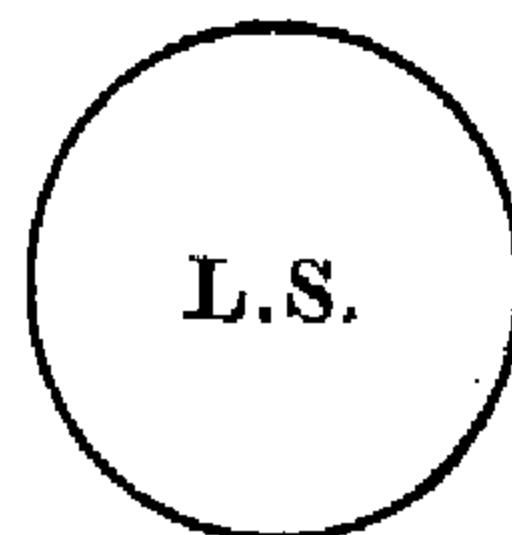
2. In the event of the said Bill becoming law—

A.D. 1929.

- (a) The Company will afford a supply of water to existing and future consumers in those parts of the parish of Cofton Hackett at Kendall End in which they are now supplying water until the Corporation desire to supply the water therein and thereupon the Company shall cease to supply water in that parish;
- (b) The Corporation will afford a supply of water to existing and future consumers in those parts of the parish of Alvechurch in which they are now supplying water until the Company desire to supply the water therein and thereupon the Corporation shall cease to supply water in that parish;
- (c) Either party hereto shall at the request of the other desiring to supply water under paragraphs (a) and (b) of this clause sell to that other the mains and ancillary works now or in future belonging to the said party in the said parishes of Cofton Hackett and Alvechurch respectively at a price to be agreed upon or in default of agreement to be determined by arbitration pursuant to the provisions of the Arbitration Act 1889.

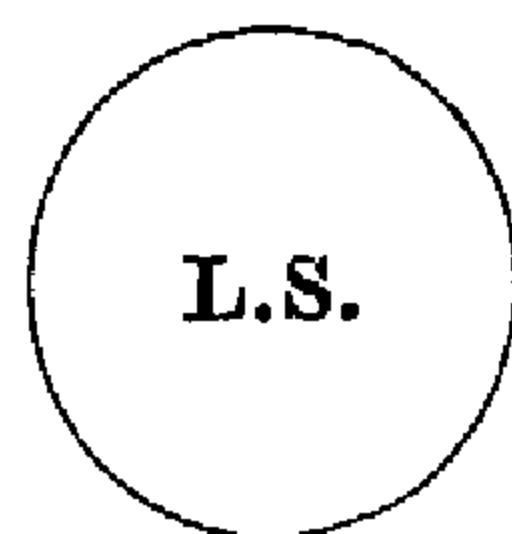
In witness whereof the Corporation and the Company have caused their common seals to be hereunto affixed the day and year first before written.

The common seal of the lord mayor aldermen
 and citizens of the city of Birmingham was
 hereto affixed in the presence of



F. H. C. WILTSHIRE Town Clerk.

The common seal of the East Worcestershire
 Waterworks Company was hereto affixed
 in the presence of



ERNEST J. BIGWOOD }
 C. D. MILWARD } Directors.
 F. E. WALKER Secretary.

A.D. 1929.

THE SECOND SCHEDULE.

BIRMINGHAM CORPORATION BONDS.

1. Bonds shall be secured on the revenues of the Corporation as defined in section 4 (Interpretation) of the Act of 1903 and any moneys borrowed by means of bonds shall be principal moneys as defined by section 124 (Security for principal moneys) of that Act.

2. Bonds shall be issued in such amounts in denominations of five hundred pounds or multiples of five hundred pounds and for such periods not being less than five years as the Corporation may determine.

3. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may determine.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

4. The principal sum secured by a bond shall be payable to the person who presents the bond for payment of such sum.

5. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the Council House Birmingham on the dates specified in the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

6.—(1) The Corporation shall issue to each lender a bond duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a bond is worn out or damaged the Corporation on the production thereof may cancel it and issue a new bond in lieu thereof.

(3) If a bond is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new bond in lieu of the bond lost or destroyed. A.D. 1929.

(4) A bond shall be in the following form or in a form substantially to the like effect :—

No.

CITY OF BIRMINGHAM.

Birmingham Corporation Bonds.

—per centum Birmingham Corporation bond repay-
 able at par 19 at the
 Council House Birmingham.

The lord mayor aldermen and citizens of the city of Birmingham by virtue of the Birmingham Corporation (General Powers) Act 1929 and in consideration of the sum of pounds paid to the treasurer of the city do hereby bind themselves to pay to the bearer hereof the sum of pounds on the date above mentioned and to pay interest thereon half-yearly on the day of and the day of at the rate of per centum per annum.

In witness whereof the said lord mayor aldermen and citizens have caused their corporate seal to be affixed the day of nineteen hundred and

NOTE.—By the Birmingham Corporation (General Powers) Act 1929 all bonds issued thereunder are secured on the rates and revenues of the Corporation of Birmingham and rank equally with and have the same status as all other securities issued by the Corporation after the passing of the Birmingham Corporation (Stock) Act 1900.

7. A bond shall be transferable by delivery.

8.—(1) There may be attached to a bond or be thereafter issued in respect thereof coupons making the interest as therein mentioned payable to the bearer of each coupon Such coupons may be issued comprising interest payable during the whole period of years for which the bond is issued or any less period and at the expiration of any such less period fresh coupons may be issued in respect of the bond or the bond may be exchanged for another bond with coupons for a further period.

A.D. 1929.
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(2) Where a coupon bears across its face two transverse lines such lines shall be deemed to be a material part of the coupon and have the force of a direction to the Corporation that it shall be paid only to or through the banker named or if none is so named to or through some banker and the same shall be payable only to or through the banker named or some banker.

9. The Corporation before paying the principal or interest secured by any bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the same.

10. No notice of any trust of or relating to the amount secured by any bond or the interest thereon shall be receivable by the Corporation.

11.—(1) If at any time any interest due on any bond remains unpaid for two months after demand in writing the persons entitled thereto may apply to the High Court for the appointment of a receiver and the court may if it thinks fit appoint a receiver on such terms as it thinks fit.

(2) The receiver shall have the like power of collecting receiving recovering and applying moneys and of assessing making and recovering all rates for the purpose of obtaining the same as the Corporation or any other officer thereof would or might have and such other powers and duties as the court thinks fit and shall apply all moneys so collected and received after paying all such costs as the court may direct for the purposes of this Act.

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